

HOUSE No. 1497

The Commonwealth of Massachusetts

PRESENTED BY:

Michelle M. DuBois

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to avoiding senior homelessness and maintaining senior housing stabilization of rents.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michelle M. DuBois</i>	<i>10th Plymouth</i>	<i>1/17/2025</i>

HOUSE No. 1497

By Representative DuBois of Brockton, a petition (accompanied by bill, House, No. 1497) of Michelle M. DuBois relative to the stabilization of rents in cities and towns facing distress in the housing market. Housing.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1318 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to avoiding senior homelessness and maintaining senior housing stabilization of rents.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 40P:2 of chapter 40P of the General Laws, as appearing in the 2020
2 Official Edition, is hereby amended by adding after "Voluntary and uncoerced", in line 5, the
3 following-

4 (except as described in Chapter 40P:3, section d)

5 SECTION 2. Section 40P:3 of Chapter 40P of the General Laws, as appearing in the
6 2020 Official Edition, is hereby further amended by adding section (d)-

7 Section (d). Exception. When individuals over 60 years reside in rental properties sold to
8 a new owner there shall be a limit on the size of annual rent increases for the individual's rental

9 unit within its jurisdiction if the tenant agrees to apply and/or shows they are on a waitlist for
10 public housing, provided that:

11 (1) Said annual limit shall not exceed the annual change in the Consumer Price Index
12 for the applicable area in which the city or town is situated, or five percent, whichever is less, for
13 the term of 5 years;

14 (2) Any dwelling unit offered for rent shall be subject to this act; however, any such
15 unit in an owner-occupied building with two dwelling units or less or any unit whose rent is
16 otherwise subject to regulation by a public authority shall be expressly excluded from this
17 provision. This provision shall apply to dwelling units in the private housing market;

18 (3) City or towns shall ensure that limited rent control of dwelling units governed by
19 this measure are eligible to seniors with income at or below 80 percent of Area Median Income.